

PROBATE COURT OF MONTGOMERY COUNTY, OHIO
DAVID D. BRANNON, JUDGE

CHANGE OF NAME OF _____
(Present Name)
TO _____
(Name Requested)
CASE NO.: _____

APPLICATION FOR CHANGE OF NAME OF MINOR
[R.C. 2717.01]

The applicant states that the applicant is the ☐ parent ☐ legal guardian ☐ guardian ad litem of the minor and that the minor has been a bona fide resident of Montgomery County, Ohio, for at least sixty days immediately prior to the filing of this application.

☐ The applicant states that the name and address of the Parent 1 of the minor is:

Name

Address

City

State

Zip

☐ and the name and address of ☐ Parent 2 or ☐ alleged father of the minor is:

Name

Address

City

State

Zip

☐ Applicant states that the address of the ☐ Parent 1 ☐ Parent 2 ☐ or alleged father is unknown and cannot with reasonable diligence be ascertained, and thus includes a Consent to Change Name of Minor (Form 21.4) or an Affidavit of Search of Address (Form 110).

☐ There is no person alleged to be the father of the minor.

CASE NO.: _____

The applicant states that the person for whom a change of name is being requested

1) _____ ☐ has ☐ has not been convicted of, pleaded guilty to, or been adjudicated a delinquent child
initials for identity fraud or identity theft.

2) _____ ☐ has a ☐ has no duty to comply with R.C.2950.04 or R.C.2950.041 because the applicant
initials was convicted of, pled guilty to, or was adjudicated a delinquent child for having
committed a sexually oriented offense or a child-victim oriented offense.

☐ The applicant requests a change of name from _____
(Current Legal Name)

to _____
(Requested Name)

for the following reason(s): _____

AFFIDAVIT OF NAME CHANGE

The Applicant, being first duly sworn and cautioned according to law, states the following with respect to the minor for whom the change of name sought:

1. Applicant has personal knowledge of the facts stated in this Affidavit;
2. The minor has been a bona fide legal resident of this county for a period of at least 60 days;
3. The Application is not being made to evade any creditors or other obligations;
4. The minor is not a debtor in any currently pending bankruptcy proceeding;
5. That all the documentary evidence submitted with the application pursuant to Revised Code 2717.07 and M.C.R. 78.4, is true, accurate, and complete;
6. The minor has not been convicted of, pleaded guilty to, or been adjudicated a delinquent child for identity fraud and does not have a duty to comply with R.C. 2950.04 or 2950.041 because the minor was convicted of, pleaded guilty to, or was adjudicated a delinquent child for having committed a sexually oriented offense or a child-victim oriented offense;

Affiant's Signature

Sworn to before me and subscribed in my presence this ____ day of _____, 20 ____

Notary Public / Deputy Clerk

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The Applicant must also include with the filing photocopies of the following documents with driver's license numbers, issuance dates and expiration dates blacked out to protect confidential information:

- ☐ **Birth Certificate (most recent copy available)**
- ☐ **Driver's License or State issued photo ID Card (if any)**

Upon perfection of service or Waiver & Consent forms signed by both parents (or guardians or custodians) the Application for Change of Name of Adult and the supporting documents will be reviewed by the Court for a Decision. If service is not perfected and executed Waiver & Consent forms are not filed by both parents, the matter will be set for a hearing. The Court will provide certified copies of the Final Judgment Entry.

Attorney's Signature

Attorney's Printed Name

Address

City State Zip Code

Telephone Number

Attorney Registration Number

Applicant's Signature

Applicant's Printed Name

Address

City State Zip Code

Telephone Number

**JOURNAL ENTRY SETTING SUBMISSION OR HEARING
AND ORDERING NOTICE**

The Court orders this application set for ☐ submission or ☐ hearing on the ____ day of _____, at _____ o'clock ____m. If the Court requires, the Court may set this matter for hearing and may require the applicant to cause notice of the application to be given by one publication in a newspaper of general circulation in this county thirty (30) days prior to the hearing date.

The applicant states that the applicant will serve notice of this application to any non-consenting parent or alleged father, whose addresses are known, by certified mail, return receipt requested, as required by law, and understands that the Court will also serve notice of any hearing if required.

Probate Judge

By: _____
Deputy Clerk

PROBATE COURT OF MONTGOMERY COUNTY, OHIO

IN RE: CHANGE OF NAME
OF _____

(Present Name)

TO _____
(Name Requested)

CASE NO.: _____

CONSENT TO CHANGE OF NAME

The undersigned _____

[check one of the following 3 capacities by which your consent is given]

- ☐ Parent
- ☐ Alleged Father
- ☐ Legal Guardian

hereby waives notice of the hearing on the Application for Change of Name and consents to the change of name of

to

as proposed in the Application.

Sworn to before me and signed in my presence this ____ day of _____, 20____.

Deputy Clerk/Notary Public

**PROBATE COURT OF MONTGOMERY COUNTY, OHIO
DAVID D. BRANNON, JUDGE**

IN RE: NAME CHANGE OF: _____, MINOR
(Current Legal Name)

TO: _____
(Requested Name)

CASE NO.: _____

**MAGISTRATE'S DECISION: CHANGE OF NAME OF MINOR
(R.C. §. 2717.01)**

Pursuant to R.C. 2717.01 et seq., pertaining to name changes, I reviewed or otherwise examined all evidence in this matter including an Application for Change of Name of Minor and any supporting documents, and testimony if any. I find that reasonable and proper cause exists for changing the name and that the name change is in the best interest of the minor.

The minor's complete name at birth was _____,
(As Name Appears on Birth Certificate)

the applicant's date of birth is _____ / _____ / _____, the applicant's place of birth is:

Month Day Year

City of Birth

County of Birth

State of Birth

Therefore, it is my RECOMMENDATION that the name of _____
_____ be changed to _____
(Current Legal Name)

(Requested Name)

Magistrate

NO PARTY SHALL ASSIGN AS ERROR ON APPEAL THE COURT'S ADOPTION OF ANY FACTUAL FINDING OR LEGAL CONCLUSION, WHETHER OR NOT SPECIFICALLY DESIGNATED AS A FINDING OF FACT OR CONCLUSION OF LAW UNDER CIV. R. 53(D)(3)(a)(ii), UNLESS THE PARTY TIMELY AND SPECIFICALLY OBJECTS TO THAT FACTUAL FINDING OR LEGAL CONCLUSION AS REQUIRED BY CIV. R. 53(D)(3)(b).

**PROBATE COURT OF MONTGOMERY COUNTY, OHIO
DAVID D. BRANNON, JUDGE**

IN RE: NAME CHANGE OF: _____, MINOR
(Current Legal Name)

TO: _____
(Requested Name)

CASE NO.: _____

**JUDGMENT ENTRY ADOPTING MAGISTRATE'S DECISION
CHANGE OF NAME, MINOR**

The undersigned Judge has reviewed the Magistrate's Decision set forth above and finds said decision to have no clear errors of law or fact and hereby adopts this decision as the Order of this Court.

This Court FINDS:

The Applicant's complete name at birth was _____,
(As Name Appears on Birth Certificate)

the applicant's date of birth is _____ / _____ / _____, the applicant's place of birth is:
Month Day Year

_____, _____, _____
City of Birth County of Birth State of Birth

Therefore, it is ORDERED that the name of _____
(Current Legal Name)

be changed to _____
(Requested Name)

A copy of the Magistrate's Decision and Judge's Order has been delivered to the applicant.

Probate Judge

CERTIFICATION OF JUDGMENT ENTRY ADOPTING MAGISTRATE'S DECISION

The above Judgment Entry Adopting Magistrate's Decision is a true copy of the original kept by me as custodian of the records of this Court.

Probate Judge

By: _____
Deputy Clerk

Date